



File No.: EXP202210240

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 2, a complaint was filed by A.A.A. with NIF ***NIF.1 and entry registration number REGAGE22e00037841476 before the Spanish Agency for Data Protection against HOLALUZ-CLIDOM S.A. with NIF A65445033 (hereinafter, the complained party). The reasons on which the complainant based their complaint were as follows:

- The complainant states that, after the termination of their lease contract and after the owner refused to make the contract change, they requested the definitive cancellation of the electricity supply with the complained party, which was their supplying company, receiving a response on June 2 confirming said cancellation.
- Subsequently, they claim to have received an email from the complained party indicating that they had not been able to carry out the requested definitive cancellation, despite the fact that they had not requested this procedure.
- They also state that they received a charge on their account. They indicate that, upon requesting information from the complained party regarding the origin of this charge, they were informed that this charge was due to the last days of their consumption and that, due to the modification of the email address associated with the contract, they had not received the communication of that last invoice for their supply.
- They assert that their personal data has been improperly handled by the complained party, as they have never requested any suspension of the definitive cancellation.

For evidentiary purposes, the following documentation is submitted:

- Copy of the emails exchanged with the complained party, in which they request the cancellation of the service and complain about the alleged suspension of the cancellation in their name.
- Police report filed with the National Police Station of Getafe.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGDD), the complaint was forwarded to the complained party, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 10/10/2022 as evidenced by the acknowledgment of receipt in the file.

THIRD: In response to the forwarding and information actions carried out, on November 10, 2022, this Agency received a written statement from the complained party, in which they state the following:

- 1) The data controller (the complained party) states "that at no time was there any identity theft of the (complainant)." They assert that there is a request from the complainant dated May 30, 2022, to cancel the supplies in their name. Furthermore, on June 3, 2022, "the owner of the property where the complainant resided as a tenant contacted the complained party, identifying herself at all times as the owner of the property, in order to manage a change of ownership of the supplies."
- 2) They state "that it is the same owner who provides the contract data for the supply in order to carry out the change of ownership prior to the cancellation of the supplies that had been requested." Consequently, they assert that no data was provided, but rather "the owner of the property had the same based on the prior contractual relationship that existed between both parties."
- 3) In this regard, they argue that, based on sector regulations, only the actual user of the energy can be the contract holder with the marketing entity, and if "the user of the energy in the installation changes, as is the case here, the contract holder with the marketing company must change accordingly."
- 4) They claim that the email sent to the complainant was addressed to the owner of the residence,

"who had requested the change of ownership of the supply prior to the definitive cancellation of the supply." They consider that its sending to the complainant was caused by a specific error, and that no harm was caused to the complainant since the supply cancellation requested by them was carried out within the agreed timeframe.

FOURTH: After analyzing the reasons presented by the complained party, which are in the file, and in the absence of reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, a resolution was issued by the Director of the Agency on November 15, 2022, agreeing to the non-admission of the complaint for processing.

This resolution was notified to the complainant on January 5, 2023, as evidenced in the file.

FIFTH: On January 2, 2023, the complainant filed a discretionary appeal for reconsideration through the Electronic Registry of the AEPD, against the resolution of inadmissibility issued in file EXP202210240, expressing their disagreement with it and requesting that the initial complaint be admitted for processing.

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In the motion for reconsideration, the claimant alleges that there has been an identity theft, as there is an email address different from theirs in their client file after the contract was terminated. They claim that, after being informed of this by the customer service of the respondent party, they requested to be informed of this email, which was denied, and subsequently received communication that their data had been deleted before they could find out who had requested the modification of their data without their authorization. They also consider it unlawful that the respondent party communicated with the owner of the property, as it involved actions by a third party regarding a contract of which they were not the holder.

SIXTH: On August 8, 2023, in procedure RR/00002/2023, the Spanish Agency for Data Protection upheld the motion for reconsideration filed by the claimant against the resolution of this Agency issued on November 15, 2022, and agreed to carry out investigative actions regarding the alleged identity theft for the contracting of electricity and fuel supplies.

SEVENTH: As a consequence of this resolution, the General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, reaching the following conclusions:

"It has been verified that the contracts were terminated following the request of the claimant and that no new registration has been made in the name of the claimant.

It has been verified, in the recordings of the calls provided as evidence by the respondent party, that the caller identifies themselves as a representative of the owner of the property. The purpose of the calls is to change the ownership of the supply contracts, and while in the process of termination, an incident is previously opened to attempt to halt said termination of service.

It has been cross-checked in the sectoral regulations that the supply contract is personal and its holder must be the actual user of the energy/fuel, and that in cases where the actual user of the energy/fuel is a person different from the holder listed in the contract, they may demand the change of the existing contract to their name, without further formalities.

It has been confirmed that the landlord, as the actual user of the supply, has the right to demand the change of the existing contract to their name and, therefore, can communicate with the respondent party regarding a contract that is not in their ownership.

The respondent party has provided screenshots of the data they currently have in their files regarding the holder of the supply contracts for the property located at C/ Jorge Juan, 6, 28001 – Madrid.

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CUPS ***REFERENCE.1 and ***REFERENCE.2. It has been confirmed that they match the personal data of the claimant. It has been verified that there has been no identity theft either to halt the

termination of contracts or to request modifications to the personal data of the claimant. Regarding the unaddressed right of access, the respondent has indicated that it was due to human error (the agent who responded to the email confused the resolution of the right of access with the right of erasure). It has been evidenced that the access request dated November 10, 2023, was properly addressed.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigative Actions

Article 67 of the LOPDGDD establishes the following regarding preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not last longer than twelve months from the date of the agreement admitting the complaint for processing or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

III

Expiration of Actions

In relation to the preliminary actions, the Regulation for the Development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that "The expiration of the term without an agreement to initiate sanctioning proceedings being issued and notified will result in the expiration of the preliminary actions."

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, more than twelve months have passed from the date of admission of the complaint for processing, and no agreement to initiate sanctioning proceedings has been issued and notified.

In this case, the computation of the maximum twelve-month duration of the preliminary actions began on November 15, 2022, the date on which the inadmissibility was declared, thus ending that term on November 15, 2023.

However, the signing of the investigative actions document took place in December 2023, one month after the expiration of that term, therefore, consequently, such actions must be declared expired.

It should be noted that in the processing of the appeal for reconsideration, no other facts, allegations, or new documents have been taken into account other than those presented in the complaint, so the filing and subsequent acceptance of that appeal does not affect the expiration period of the investigative actions.

Therefore, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative actions.

SECOND: TO NOTIFY this Resolution to HOLALUZ-CLIDOM S.A. and to the claimant.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court.

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in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided for in Article 46.1 of the aforementioned Law.

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